

**SUBSTITUTE FOR
HOUSE BILL NO. 5105**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 7401 (MCL 333.7401), as amended by 2016 PA 548.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 7401. (1) Except as authorized by this article, a person
2 shall not manufacture, create, deliver, or possess with intent to
3 manufacture, create, or deliver a controlled substance, a
4 prescription form, or a counterfeit prescription form. A
5 practitioner licensed by the administrator under this article shall
6 not dispense, prescribe, or administer a controlled substance for
7 other than legitimate and professionally recognized therapeutic or
8 scientific purposes or outside the scope of practice of the
9 practitioner, licensee, or applicant.



(2) A person who violates this section as to:

(a) A controlled substance classified in schedule 1 or 2 that is a narcotic drug or a drug described in section 7214(a) (iv) and:

(i) ~~Which~~ **That** is in an amount of 1,000 grams or more of any mixture containing that substance is guilty of a felony punishable by imprisonment for life or any term of years or a fine of not more than \$1,000,000.00, or both.

(ii) ~~Which~~ **That** is in an amount of 450 grams or more, but less than 1,000 grams, of any mixture containing that substance is guilty of a felony and punishable by imprisonment for not more than 30 years or a fine of not more than \$500,000.00, or both.

(iii) ~~Which~~ **That** is in an amount of 50 grams or more, but less than 450 grams, of any mixture containing that substance is guilty of a felony punishable by imprisonment for not more than 20 years or a fine of not more than \$250,000.00, or both.

(iv) ~~Which~~ **That** is in an amount less than 50 grams, of any mixture containing that substance is guilty of a felony punishable by imprisonment for not more than 20 years or a fine of not more than \$25,000.00, or both.

(b) Either of the following:

(i) A substance described in section 7212(1) (h) or 7214(c) (ii) is guilty of a felony punishable by imprisonment for not more than 20 years or a fine of not more than \$25,000.00, or both.

(ii) Any other controlled substance classified in schedule 1, 2, or 3, except marihuana or a substance listed in section 7212(1) (d), is guilty of a felony punishable by imprisonment for not more than 7 years or a fine of not more than \$10,000.00, or both.

(c) A substance classified in schedule 4 is guilty of a felony



1 punishable by imprisonment for not more than 4 years or a fine of
2 not more than \$2,000.00, or both.

3 (d) Marihuana, a mixture containing marihuana, or a substance
4 listed in section 7212(1) (d) is guilty of a ~~felony punishable crime~~
5 as follows:

6 (i) If the amount is ~~45-250~~ kilograms or more ~~, or 200-500~~
7 plants or more, **or if the amount is 25 kilograms or more of**
8 **marihuana concentrate, a felony punishable** by imprisonment for not
9 more than 15 years or a fine of not more than \$10,000,000.00, or
10 both.

11 (ii) If the amount is ~~5-200~~ kilograms or more but less than ~~45~~
12 **250 kilograms**, ~~, or 20-400~~ plants or more but fewer than ~~200-500~~
13 plants, **or if the amount is 20 kilograms or more but less than 25**
14 **kilograms of marihuana concentrate, a felony punishable** by
15 imprisonment for not more than ~~7-4~~ years or a fine of not more than
16 ~~\$500,000.00, \$2,000,000.00,~~ or both.

17 (iii) If the amount is ~~less than 5-100~~ kilograms or **more but**
18 **less than 200 kilograms or 200 plants or more but fewer than 20-400**
19 plants, **or if the amount is 10 kilograms or more but less than 20**
20 **kilograms of marihuana concentrate, a felony punishable** by
21 imprisonment for not more than ~~4-3~~ years or a fine of not more than
22 ~~\$20,000.00, \$500,000.00,~~ or both.

23 (iv) If the amount is 50 kilograms or more but less than 100
24 kilograms or 100 plants or more but fewer than 200 plants, or if
25 the amount is 5 kilograms or more but less than 10 kilograms of
26 marihuana concentrate, a felony punishable by imprisonment for not
27 more than 2 years or a fine of not more than \$80,000.00, or both.

28 (v) If the amount is 37.5 kilograms or more but less than 50
29 kilograms or 75 plants or more but fewer than 100 plants, or if the



1 amount is 3.75 kilograms or more but less than 5 kilograms of
2 marihuana concentrate, a misdemeanor punishable by imprisonment for
3 not more than 1 year or a fine of not more than \$60,000.00, or
4 both.

5 (vi) If the amount is more than 25 kilograms but less than 37.5
6 kilograms or more than 50 plants but fewer than 75 plants, or if
7 the amount is more than 2.5 kilograms but less than 3.75 kilograms
8 of marihuana concentrate, a misdemeanor punishable by imprisonment
9 for not more than 1 year or a fine of not more than \$30,000.00, or
10 both.

11 (e) A substance classified in schedule 5 is guilty of a felony
12 punishable by imprisonment for not more than 2 years or a fine of
13 not more than \$2,000.00, or both.

14 (f) A prescription form or a counterfeit prescription form is
15 guilty of a felony punishable by imprisonment for not more than 7
16 years or a fine of not more than \$5,000.00, or both.

17 (3) A term of imprisonment imposed under subsection (2) (a) may
18 be imposed to run consecutively with any term of imprisonment
19 imposed for the commission of another felony.

20 (4) If an individual was sentenced to lifetime probation under
21 subsection (2) (a) (iv) as it existed before March 1, 2003 and the
22 individual has served 5 or more years of that probationary period,
23 the probation officer for that individual may recommend to the
24 court that the court discharge the individual from probation. If an
25 individual's probation officer does not recommend discharge as
26 provided in this subsection, with notice to the prosecutor, the
27 individual may petition the court seeking resentencing under the
28 court rules. The court may discharge an individual from probation
29 as provided in this subsection. An individual may file more than 1



1 motion seeking resentencing under this subsection.

2 (5) As used in this section, "plant" means a marihuana plant
3 that has produced cotyledons or a cutting of a marihuana plant that
4 has produced cotyledons.

5 Enacting section 1. This amendatory act does not take effect
6 unless House Bill No. 5107 of the 103rd Legislature is enacted into
7 law.

